

MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI.

No. MahaRERA/VH/WARRANT/12/04/2023.

Date: 26th April 2023.

To,
The Collector,
Office of Collector,
Mumbai Suburban District,
Administrative Building,
9th Floor, Government Colony,
Opp. Chetana College, Bandra (East),
Mumbai - 400 051.

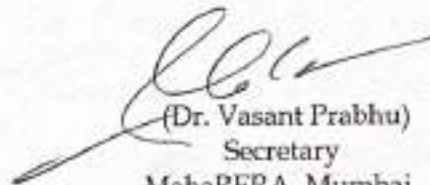
Sub: Execution of the warrant under Section 40(1) of RERA in Complaint No. CC006000000057259 filed by Ms. Swati Patil Vs. Nirmal Developers, in Project No. P51800012383.

Sir,

I am forwarding the recovery warrant under Section 40(1) of RERA & for its execution. You are requested to look into the matter personally and get the warrant executed at the earliest. On realization of the amount, you are requested to inform us.

*Received:
Swati Patil.*

Yours faithfully,


(Dr. Vasant Prabhu)
Secretary
MahaRERA, Mumbai.

Encl.: Warrant with
necessary papers.

Details of the attachable assets to be required u/s 17/2 of Maharashtra Realization of Land Revenue Rules 1967. When Revenue Recovery Certificate is under the provision of Revenue Recovery Act 1890.

No. MahaRERA/VH/WARRANT/12/04/2023.

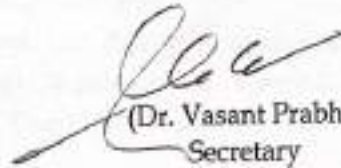
Date: 26th April 2023.

1.	Name and address of the firm: -	Ms. Swati Patil 202, MSCB Empl Yogesh CHS, Shimpoli Road, Kasturpark, Near Suvarna Hospital, Borivali West, Mumbai - 400092. Mobile No.- +91- 9167373959 Email ID: - swatipc@yahoo.com
2.	The sum to be recovered.	Refund of Rs. 36,18,233.97/- including the principal amount of Rs. 17,76,072/- and interest of Rs. 18,42,161.97/- calculated till 18/04/2023 along with further interest till full refund of the amount to the Complainant.
3.	The provision of law under which the R.R.C. is sent to recover the sum as in arrears of Land Revenue.	Recovery warrant u/s 40(1) of Real Estate (Regulation and Development) Act, 2016 and Rule 3 of Maharashtra Real Estate (Regulation and Development) (Recovery of Interest, Penalty, Compensation, Fine payable, Forms of Complaints and Appeals, etc.) Rules, 2017.
4.	No. & Date of order under which amount is ordered to be recovered.	Complaint No.: CC006000000057259 Final Order dated: 19 th July 2019
5.	Full name and address of the defaulter with name of the building, room no., road name, village name/town, taluka, Dist. Pin Code No.	Nirmal Developers Jawahar Talkies Compound, Dr. R.P. Road, Mulund West, Mumbai - 400080. Mr. Dharmesh Jain - Authorized Signatory

		Nirmal House, Mulund Goregaon Link Road, Nirmal Nagar, Behind D Mart, Mulund West, Mumbai - 400080. Shailendra Minocha - HOD Mobile No.- +91- 9004465472 Email ID: - ndmulund@nirmallifestyle.com
6.	Full details of the property of defaulter against which the process may be executed.	The flat no 304, on 3rd Floor, in D Wing in the Project known as "Olympia" situated at Plot Bearing No / CTS no / Survey Number/Final Plot no. 4/2 at Mulund West, Dist. Mumbai - 400080. a) Housing project which is duly registered under the RERA Act bearing Registration No. P51800012383. b) Other apartments which are still not booked. Note: Land on which the project is being implemented, apartments that are already booked with other allottees should not be attached so that the project can be completed.
7.	Immovable property: a) Name of the building House/Building. b) Room No. c) Name of the village/town d) Road name/gally name e) Sr. No./II No. of the property f) Area of the property in square meters g) CTS No. of the property area of the property.	c) If by attaching the property mentioned in 6 above still arrears remain, then the properties/offices or any other movable or immovable properties of the defaulters be attached and auctioned. In order to ascertain unsold inventory and other properties of defaulters, you may adopt the procedure similar to which laid down under Order 21 Rule 41 CPC - namely to examine the

		judgement debtor to disclose his property and produce its property card, failing which he can be sent to jail for 3 months.
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Mumbai
Date: 26th April 2023


(Dr. Vasant Prabhu)
Secretary
MahaRERA, Mumbai

**MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI.**

No. MahaRERA/VH/WARRANT/12/04/2023.

Date: 26th April 2023.

Recovery Warrant U/s. 40(1) of Real Estate

(Regulation and Development) Act, 2016 and Rule 3 of Maharashtra Real Estate (Regulation and Development) (Recovery of Interest, Penalty, Compensation, Fine payable, Forms of Complaints and Appeal, etc.) Rules, 2017.

Complaint No.: CC006000000057259

Project No: P51800012383

Ms. Swati Patil

--- Complainant.

Versus

Nirmal Developers

--- Respondent.

To,
The Collector,
Office of Collector,
Mumbai Suburban District,
Administrative Building,
9th Floor, Government Colony,
Opp. Chetana College, Bandra (East),
Mumbai - 400 051.

Whereas the above-named complainant has filed the above complaint No. CC006000000057259, and the Authority/Adjudicating Officer passed the enclosed order wherein the Respondent was to refund the amount paid by the Complainant with 12% interest in six equal installments starting from 15/07/2019.

And whereas the respondent has failed to comply with the order.

And whereas the amount ordered is recoverable from the respondents as an arrears of land revenue by virtue of Section 40(1) of Real Estate (Regulation and Development) Act, 2016 and Rule 3 of Maharashtra Real Estate (Regulation and Development) (Recovery of Interest, Penalty,

Compensation, Fine payable, Forms of Complaints and Appeal, etc.) Rules, 2017.

You are hereby directed to recover the ordered amount from the respondent as the arrears of land revenue and pay it to the complainant and report the compliance.

The necessary information is:

1) Name of complainant with his address:

Ms. Swati Patil

202, MSCB Empl Yogesh CHS, Shimpoli Road, Kasturpark, Near
Suvarna Hospital, Borivali West, Mumbai - 400092.

Mobile No.- +91- 9167373959

Email ID: - swaticp@yahoo.com

2) Name of respondents/promoters/directors/partners
with their addresses:

Nirmal Developers

Pan No.

Jawahar Talkies Compound, Dr. R.P. Road, Mulund West, Mumbai -
400080.

Mr. Dharmesh Jain - Authorized Signatory

Nirmal House, Mulund Goregaon Link Road, Nirmal Nagar, Behind
D Mart, Mulund West, Mumbai - 400080.

Shailendra Minocha - HOD

Mobile No.- +91- 9004465472

Email ID: - ndmulund@nirmallifestyle.com

3. Name of the project & its location:

The flat no 304, on 3rd Floor, in D Wing, in the Project known as
"Olympia" situated at Plot Bearing No / CTS no / Survey
Number/Final Plot no. 4/2 at Mulund West, Dist. Mumbai - 400080.

a) Housing project which is duly registered under the RERA Act bearing Registration No. P51800012383.

b) Other apartments which are still not booked.

Note: Land on which the project is being implemented, apartments that are already booked with other allottees and should not be attached so that the project can be completed.

4) Particulars of immovable property and any other movable and immovable property:

a) If by attaching the property mentioned in 3 above still arrears remain, then the properties/offices or any other movable or immovable properties of the defaulters be attached and auctioned. In order to ascertain unsold inventory and other properties of defaulters, you may adopt the procedure similar to which laid down under Order 21 Rule 41 CPC - namely to examine the judgement debtor to disclose his property and produce its property card, failing which he can be sent to jail for 3 months.

5) Amount to be refunded:

Refund of Rs. 36,18,233.97/- including the principal amount of Rs. 17,76,072/- and interest of Rs. 18,42,161.97/- calculated till 18/04/2023 along with further interest till full refund of the amount to the Complainant.

6) Enclosures:

- i) Final order dated 19th July 2019.
- ii) Order of Non-compliance dated 13th June 2022.
- iii) Email of the complainant.

Mumbai
Date: 26th April 2023


(Dr. Vasant Prabhu)
Secretary
MahaRERA, Mumbai

Date: Monday, 13th June 2022

Sr. No. 54

**BEFORE THE MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY
MUMBAI**

Video Conferencing Hearing Held by Dr. Vijay Satbir Singh, Hon'ble Member-1

Non-Execution Application

In

Complaint No. CC006000000057259

Swati Patil

...Complainant/s

Versus

Nirmal Developers

...Respondent/s

MahaRERA Project Registration No. P51800012383

ROZNAMA

Complainant/ Advocate Name	Respondent/ Advocate Name
The complainant appeared in person.	None appeared for the respondent.
The complainant is heard. None appeared for the respondent. The hearing is concluded. The Non-Execution application stands transferred to Ld. Secretary MahaRERA for issuance of recovery warrant. For  Legal Consultant/ MahaRERA (Roznama dictated. Accepted by the parties)	

Swapnil Utangale <swapnil.maharera@gmail.com>

*atll <swatllp@yahoo.com>
al-consult32@maharera.mahaonline.gov.in, swapnil.maharera@gmail.com, legal-
2@maharera.mahaonline.gov.in

Tue, Apr 18, 2023 at 1:11 PM

discussed yesterday, please find attached the refund calculations for the case 57259. Kindly acknowledge the email, as per our discussion yesterday, kindly release the warrant by end of this week. Thank you.

st Regards,
Jati Patil
9029003539

<https://www.google.com/search?q=the+2025+500+most+innovative+startups+in+the+world&rlz=1C176340808950073...> 1/1

As on date	18-Apr-23		
Interest rate	12%		
Payment Date	Principal Amount	Days	Interest Amount @ 12% *
4/28/2014	108,000.00	3277	116,355.95
5/10/2014	596,496.00	3265	640,293.51
5/22/2014	697,451.00	3253	745,909.51
9/26/2015	361,474.00	2761	328,119.36
9/26/2015	12,651.00	2761	11,483.64
	1,776,072.00		1,842,161.97
Principal + Interest			3,618,233.97